

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

02/13/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEFENDANTS' GOOD FAITH
ATTEMPT TO MEET AND CONFER**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Complaint Filed: December 23, 2025

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1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California,
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant
4 CSAA INSURANCE EXCHANGE ("Defendant"). Except for those matters stated on information
5 and belief, the facts set forth herein are true of my own personal knowledge and if called as a witness,
6 I could and would properly testify hereto.

7 2. I have not yet had the opportunity to meaningfully meet and confer with Plaintiff
8 FRANCISCUS DYLAN ROSARIO ("Plaintiff").

9 3. I will soon send a detailed meet & confer correspondence to Plaintiff in an effort to
10 meet and confer on the deficiencies in the operative Complaint. These efforts are intended to
11 determine whether resolution could be reached to avoid a law and motion event pursuant to Code
12 of Civil Procedure sections 430.41 and 435.5, inter alia.

13 4. Defendant therefore submits this Declaration to obtain an automatic extension of
14 time to file a responsive pleading pursuant to Code of Civil Procedure section 430.31(a)(2). The
15 extension will allow the parties to complete a Code-compliant meet and confer in hopes of resolving
16 the above-described deficiencies in Plaintiff's Complaint without having to go through the Demurrer
17 process.

18 I declare under the penalty of perjury under the laws of the State of California that the
19 foregoing is true and correct, and that this declaration was executed on February 13, 2026, at
20 Sacramento, California.

21 *Tyler J. O'Connell*
22 Tyler J. O'Connell
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On February 13, 2026, I served the following document:

7 **DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANTS'**

8 **GOOD FAITH ATTEMPT TO MEET AND CONFER**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
11	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
12	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

13 Addressed as follows:

14 **PLAINTIFF, IN PRO PER**

15 Franciscus Dylan Rosario
16 7624 Melody Drive
17 Rohnert Park, CA 94928
18 soltrinox@gmail.com

19 I declare under penalty of perjury under the laws of the State of California that the foregoing
20 is true and correct. Executed on Folsom, California on February 13, 2026.

21
22
23 **Monique Schubert**
24 Monique Schubert